

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                                                 |                                                                   |                           |                                                        |                                    |                                 |
|---------------------------------------------------------------------------------|-------------------------------------------------------------------|---------------------------|--------------------------------------------------------|------------------------------------|---------------------------------|
| Investigator:<br>Haeley Galeote                                                 | Team:<br>Squad #16                                                | CCRB Case #:<br>202311676 | <input type="checkbox"/> Force                         | <input type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.   |
|                                                                                 |                                                                   |                           | <input checked="" type="checkbox"/> Abuse              | <input type="checkbox"/> O.L.      | <input type="checkbox"/> Injury |
| Incident Date(s)<br>Tuesday, 12/12/2023 8:30 PM, Tuesday,<br>12/12/2023 8:55 PM | Location of Incident:<br>§ 87(2)(b)<br>70th Precinct Stationhouse | 18 Mo. SOL<br>6/12/2025   | Precinct:<br>70                                        |                                    |                                 |
| Date/Time CV Reported<br>Wed, 12/13/2023 12:34 PM                               | CV Reported At:<br>CCRB                                           | How CV Reported:<br>Phone | Date/Time Received at CCRB<br>Wed, 12/13/2023 12:34 PM |                                    |                                 |

| Complainant/Victim | Type       | Home Address |
|--------------------|------------|--------------|
| § 87(2)(b)         | § 87(2)(b) | § 87(2)(b)   |

| Subject Officer(s)       | Shield | TaxID  | Command   |
|--------------------------|--------|--------|-----------|
| 1. Officers              |        |        |           |
| 2. PO Nicholas Toner     | 28652  | 968845 | BS SU CRT |
| 3. SGT Michael Venditti  | 03739  | 952318 | BS SU CRT |
| 4. PO Christopher Mattar | 14279  | 966199 | BS SU CRT |
| 5. PO Dia Abdallah       | 28181  | 966920 | BS SU CRT |
| 6. PO Rosarion Saintelme | 21423  | 959960 | BS SU CRT |

| Officer(s)                | Allegation                                                                                                              | Investigator Recommendation |
|---------------------------|-------------------------------------------------------------------------------------------------------------------------|-----------------------------|
| A . Officers              | Abuse: At § 87(2)(b) in Brooklyn, officers stopped the vehicle in which § 87(2)(b) was an occupant.                     | A . Within NYPD Guidelines  |
| B . PO Dia Abdallah       | Abuse: At § 87(2)(b) in Brooklyn, Police Officer Dia Abdallah questioned § 87(2)(b)                                     | B . Substantiated           |
| C . PO Dia Abdallah       | Abuse: At § 87(2)(b) in Brooklyn, Police Officer Dia Abdallah frisked § 87(2)(b)                                        | C . Substantiated           |
| D . PO Dia Abdallah       | Abuse: At § 87(2)(b) in Brooklyn, Police Officer Dia Abdallah searched § 87(2)(b)                                       | D . Substantiated           |
| E . SGT Michael Venditti  | Abuse: At § 87(2)(b) in Brooklyn, Sergeant Michael Venditti searched the vehicle in which § 87(2)(b) was an occupant.   | E . Within NYPD Guidelines  |
| F . PO Dia Abdallah       | Abuse: At § 87(2)(b) in Brooklyn, Police Officer Dia Abdallah searched the vehicle in which § 87(2)(b) was an occupant. | F . Within NYPD Guidelines  |
| G . SGT Michael Venditti  | Abuse: At § 87(2)(b) in Brooklyn, Sergeant Michael Venditti detained § 87(2)(b)                                         | G . Substantiated           |
| H . PO Nicholas Toner     | Abuse: At § 87(2)(b) in Brooklyn, Police Officer Nicholas Toner frisked § 87(2)(b)                                      | H . Within NYPD Guidelines  |
| I . PO Nicholas Toner     | Abuse: At § 87(2)(b) in Brooklyn, Police Officer Nicholas Toner searched § 87(2)(b)                                     | I . Substantiated           |
| J . PO Rosarion Saintelme | Abuse: At § 87(2)(b) in Brooklyn, Police Officer Rosarion Saintelme frisked § 87(2)(b)                                  | J . Within NYPD Guidelines  |
| K . PO Rosarion Saintelme | Abuse: At § 87(2)(b) in Brooklyn, Police Officer Rosarion Saintelme searched § 87(2)(b)                                 | K . Substantiated           |
| L . PO Christopher Mattar | Abuse: At § 87(2)(b) in Brooklyn, Police Officer Christopher Mattar seized § 87(2)(b) property.                         | L . Within NYPD Guidelines  |
| M . PO Nicholas Toner     | Abuse: At the 70th Precinct stationhouse, Police Officer Nicholas Toner frisked § 87(2)(b)                              | M . Within NYPD Guidelines  |

| Officer(s)            | Allegation                                                                                  | Investigator Recommendation |
|-----------------------|---------------------------------------------------------------------------------------------|-----------------------------|
| N . PO Nicholas Toner | Abuse: At the 70th Precinct stationhouse, Police Officer Nicholas Toner searched § 87(2)(b) | N . Within NYPD Guidelines  |
| O . Officers          | Abuse: At the 70th Precinct stationhouse, officers damaged § 87(2)(b) property.             | O . Officer(s) Unidentified |
| § 87(2)(g), § 87(4-b) | [REDACTED]                                                                                  | [REDACTED]                  |
| § 87(2)(g), § 87(4-b) | [REDACTED]                                                                                  | [REDACTED]                  |
| § 87(2)(g), § 87(4-b) | [REDACTED]                                                                                  | [REDACTED]                  |
| § 87(2)(g), § 87(4-b) | [REDACTED]                                                                                  | [REDACTED]                  |
| § 87(2)(g), § 87(4-b) | [REDACTED]                                                                                  | [REDACTED]                  |

### Case Summary

On December 13, 2023, § 87(2)(b) filed this complaint with the CCRB via phone.

On December 12, 2023, at approximately 8:30 p.m., in front of § 87(2)(b) in Brooklyn, Police Officers Nicholas Toner, Christopher Mattar, Dia Abdallah, Rosarion Saintelme, and Sergeant Michael Venditti, all from the Patrol Borough Brooklyn South Community Response Team, stopped § 87(2)(b) vehicle (**Allegation A: Abuse of Authority, within NYPD guidelines**). PO Abdallah asked § 87(2)(b) if he had any weapons on him and in the vehicle (**Allegation B: Abuse of Authority, substantiated**). PO Abdallah frisked and searched § 87(2)(b) (**Allegation C: Abuse of Authority, substantiated; Allegation D: Abuse of Authority, substantiated**). Sgt. Venditti and PO Abdallah then searched § 87(2)(b) vehicle (**Allegations E-F: Abuse of Authority, within NYPD guidelines**). Sgt. Venditti decided to detain § 87(2)(b) at the 70<sup>th</sup> Precinct stationhouse (**Allegation G: Abuse of Authority, substantiated**). PO Toner and PO Saintelme frisked and searched § 87(2)(b) (**Allegation H: Abuse of Authority, within NYPD guidelines; Allegation I: Abuse of Authority, substantiated; Allegation J: Abuse of Authority, within NYPD guidelines; Allegation K: Abuse of Authority, substantiated**). PO Mattar seized § 87(2)(b) vehicle (**Allegation L: Abuse of Authority, within NYPD guidelines**).

At the 70<sup>th</sup> Precinct stationhouse, PO Toner frisked and searched § 87(2)(b) (**Allegations M-N: Abuse of Authority, within NYPD guidelines**). An officer allegedly damaged § 87(2)(b) vehicle (**Allegation O: Abuse of Authority, officer(s) unidentified**).

§ 87(2)(g), § 87(4-b)

§ 87(2)(b) was issued a summons for an open container (**BR 05**).

The investigation is in possession of six body-worn camera (BWC) (**BR 28**). The investigation is not in possession of additional video footage.

This case was originally assigned to former Investigator Sam Edison and was reassigned to Investigator Haeley Galeote on May 23, 2024.

### Findings and Recommendations

**Allegation (A) Abuse of Authority: At § 87(2)(b) in Brooklyn, officers stopped the vehicle in which § 87(2)(b) was an occupant.**

§ 87(2)(b) stated (**BR 01**) that on December 12, 2023, at approximately 8:30 p.m., he was inside his double-parked vehicle with an open alcoholic container in the back of his vehicle. After approximately 20 minutes of waiting, he saw flashlights pointed towards his vehicle and observed one unmarked vehicle in front of his vehicle and another behind his vehicle. PO Toner, identified by the investigation, walked up to the driver's side window, while PO Mattar, PO Abdallah, PO Saintelme, and Sgt. Venditti, all identified by the investigation, stayed by the passenger side. PO Toner asked § 87(2)(b) to roll down his windows, which § 87(2)(b) did. PO Toner then asked for ID, which § 87(2)(b) provided along with his license and registration. PO Toner did not explain the reason for the stop but asked § 87(2)(b) what he was doing double parked on the street, to which § 87(2)(b) replied that he was waiting for a parking space to open on the street.

PO Toner and PO Abdallah stated that they were in a vehicle together with Sgt. Venditti, while PO Saintelme and PO Mattar were in another vehicle (**BR 13-16**). PO Abdallah stated that he noticed § 87(2)(b) vehicle double parked with tinted windows and went over the radio to inform PO Saintelme of the traffic infractions. PO Abdallah then activated his lights and sirens, before stepping out of his vehicle. PO Abdallah did not recall having a conversation with Sgt. Venditti and PO Toner before stepping out of the vehicle. PO Toner and Sgt. Venditti stated that the vehicle was stopped due to being double parked and having window tints. PO Saintelme did not remember the traffic infraction communicated by PO Abdallah but observed § 87(2)(b)

vehicle double parked as he approached the vehicle. As PO Toner and PO Abdallah requested § 87(2)(b) license and registration, which he provided, PO Toner, PO Abdallah, and Sgt. Venditti saw an open container at the back of the vehicle, though they did not recall where exactly. Sgt. Venditti and PO Abdallah were unable to describe the bottle, nor could Sgt. Venditti recall how he knew the bottle was open. PO Abdallah stated the bottle was open because the seal to the bottle was broken, and there was dark liquid inside the bottle, but less than an unopened bottle would contain. PO Toner also stated that there was less liquid in the bottle and added that the container was a “Dusse VSOP” bottle, which was clear with a gold emblem, and contained brown liquor. Sgt. Venditti instructed the officers to remove § 87(2)(b) from the vehicle upon seeing the open container.

The investigation was able to make a determination without PO Mattar’s statement.

In PO Toner’s BWC (**BR 06**) at 01:00, PO Toner approaches § 87(2)(b) double-parked vehicle. The side windows appear to be tinted. At 01:12, PO Toner asks § 87(2)(b) for his license and registration. At 01:48, PO Toner asks § 87(2)(b) if he was looking for parking, to which § 87(2)(b) states yes. PO Toner says that they are addressing “little things,” including double parking.

In PO Abdallah’s BWC (**BR 07**) at 02:04, there are two plastic cups seen in the center console, one seems to have a Wendy’s logo. No containers can be seen in the vehicle from where PO Abdallah stands. At 02:19, Sgt. Venditti tells PO Abdallah to take § 87(2)(b) out of the car.

In Sgt. Venditti’s BWC (**BR 08**) from 01:21 to 01:40, Sgt. Venditti is pointing his flashlight at the front passenger side window and two plastic cups are seen in the center console. At 01:49, § 87(2)(b) is seen lifting one of the plastic cups up with red liquid in it. From 02:13 to 02:24, Sgt. Venditti points his flashlight at the rear passenger side window and the front passenger seat is seen reclined back, covering the view of the backseat and of anything on the floor. At 02:24, Sgt. Venditti tells PO Abdallah to take § 87(2)(b) out because there is a liquor bottle in the back.

In PO Saintelme’s BWC (**BR 09**) from 01:09 to 02:20, PO Saintelme points his flashlight at the rear driver’s side window, but BWC is unable to capture any open container inside of the vehicle due to the tinted windows.

In PO Mattar’s BWC (**BR 10**) at 01:05, PO Mattar points his flashlight at the rear passenger side window. At 01:20, the floor on the rear driver’s side is difficult to see due to the tinted window and the floor on the passenger side is covered by the reclined front passenger seat. Nothing is seen on the rear driver’s side passenger seat.

§ 87(2)(b) was issued a summons (**BR 05**) for Vehicle & Traffic Law (VTL) §1227, noting that an open bottle of a 750 ML “Dusse VSOP” was observed inside the vehicle.

*Vehicle & Traffic Law Section 1200-b* (**BR 29**) states that when standing is prohibited by this article, or by local law, ordinance, order, rule or regulation, no person shall stand or park a vehicle, whether occupied or not, but may stop temporarily for the purpose of and while actually engaged in receiving or discharging passengers.

*Vehicle & Traffic Law Section 1227* (**BR 11**) states that the drinking of alcoholic beverages or the possession of an open container containing an alcoholic beverage, in a motor vehicle located upon the public highways or right-of-way public highway is prohibited. Any operator or passenger violating this section shall be guilty of a traffic infraction.

It is undisputed that § 87(2)(b) was illegally double parked § 87(2)(g).  
§ 87(2)(b)  
§ 87(2)(b)  
the BWC does not clearly capture the liquor bottle, § 87(2)(g).  
§ 87(2)(b)  
Therefore, it is recommended that **Allegation A** be closed as *within NYPD guidelines*.



**Allegation (B) Abuse of Authority: At § 87(2)(b) in Brooklyn, Police Officer Dia Abdallah questioned § 87(2)(b)**

**Allegation (C) Abuse of Authority: At § 87(2)(b) in Brooklyn, Police Officer Dia Abdallah frisked § 87(2)(b)**

**Allegation (D) Abuse of Authority: At § 87(2)(b) in Brooklyn, Police Officer Dia Abdallah searched § 87(2)(b)**

§ 87(2)(b) stated (BR 01) that after providing his ID and vehicle documents, PO Toner asked him to step out of the vehicle. PO Abdallah brought § 87(2)(b) by the rear driver's side door and frisked him. § 87(2)(b) was wearing a turtleneck sweater, black sweatpants with two side pockets, and long johns underneath the sweatpants. One of the pockets on § 87(2)(b) sweatpants contained his phone. PO Abdallah frisked § 87(2)(b) from his chest all the way down to his legs. PO Abdallah reached inside both sweatpants' pockets and took out his phone. PO Abdallah then pulled on the waistband of the sweatpants and reached his hand down inside and felt around his thighs and below his genital area. PO Abdallah never went inside the long johns. § 87(2)(b) asked PO Abdallah what he was doing and why he needed to search inside his pants, to which PO Abdallah stopped and told § 87(2)(b) to step to the back of the vehicle. § 87(2)(b) did not mention that PO Abdallah asked him if he had anything sharp on him.

PO Abdallah stated (BR 13) that he asked § 87(2)(b) to exit the vehicle upon officers noticing the open container of alcohol. Before § 87(2)(b) was asked to exit his vehicle, he appeared calm but annoyed. After § 87(2)(b) exited the vehicle, PO Abdallah asked § 87(2)(b) if he had anything "sharp or pointy" on him due to being in close proximity to one another. PO Abdallah did not have any indication that § 87(2)(b) was possibly armed nor see any bulges on him. PO Abdallah then asked § 87(2)(b) "Can I check you?" due to their close proximity, to which § 87(2)(b) consented. PO Abdallah explained that by "check," he meant search, and believed that § 87(2)(b) also knew it meant search because he consented by stating, "Go ahead." PO Abdallah added that it is procedure to frisk and search after asking to check someone. PO Abdallah did not inform § 87(2)(b) that consent could be revoked, and § 87(2)(b) did not stop PO Abdallah from performing the search. PO Abdallah searched § 87(2)(b) pant pockets, in which nothing was found, and pulled § 87(2)(b) pants away from the body to look at his waistband to confirm there were no weapons clipped to it, but found nothing. PO Abdallah then patted down § 87(2)(b) legs, rolled down his socks, and lifted his sweater, but found nothing. PO Abdallah then asked § 87(2)(b) if he had anything crazy in the car, meaning if he had any potential weapons such as guns and knives, though there was no indication that § 87(2)(b) had a weapon in the vehicle. PO Abdallah explained he wanted to know in case they found something in the vehicle as he then proceeded to inform § 87(2)(b) that his vehicle would be searched due to the open container.

In PO Abdallah's BWC (BR 07) after § 87(2)(b) exits the vehicle, at 02:48, PO Abdallah asks § 87(2)(b) if he has anything sharp or pointy on him that could hurt him, to which § 87(2)(b) states no. At 02:52, PO Abdallah asks if he can check to make sure to which § 87(2)(b) states, "Go ahead." At 02:57, PO Abdallah searches § 87(2)(b) left pant pocket. At 3:13, it appears that PO Abdallah runs his hand along the rear waistband of § 87(2)(b) sweatpants. At 03:22, PO Abdallah frisks § 87(2)(b) left inner thigh area down to his ankle. It is unclear what PO Abdallah does by § 87(2)(b) ankle. At 03:36, PO Abdallah lifts § 87(2)(b) right pant leg and rolls down his sock.

In PO Toner's BWC (BR 06) at 03:01, PO Abdallah places his left hand inside of § 87(2)(b) right pant pocket and his right hand in the left pant pocket. At 03:15, PO Abdallah searches the inside of § 87(2)(b) waistband. At 03:22, PO Abdallah frisks § 87(2)(b) groin/inner thigh area. At 03:58, PO Abdallah frisks the front of § 87(2)(b) sweater and lifts it up. At 04:10, PO Abdallah sticks his hand inside § 87(2)(b) waistband, starting with the

back and then sliding them to the front inside of the waistband. At 04:13, PO Abdallah squeezes at the inside front of § 87(2)(b) sweatpants and then removes his hand. At 04:16, § 87(2)(b) asks PO Abdallah if there is a reason he put his hand in his pants, to which PO Abdallah states it is to confirm there are no knives on him due to how close they are to each other.

Sgt. Venditti's, PO Mattar's, and PO Saintelme's BWCs do not capture the interaction from a better angle (BR 08-10).

*New York v. Hollman*, 79 N.Y. 2d 181 (BR 12), states that officers must have founded suspicion of criminality to ask a civilian pointed or accusatory questions.

*People v. DeBour*, 40 N.Y.2d 210 (BR 17) states that officers may frisk an individual when they have reasonable suspicion that the individual has a weapon. Additionally, reasonable suspicion exists when the officer suspects that the person has committed, is committing, or will commit a violent crime including situations in which an officer observes something on the person that they suspect is a weapon. Officers must have probable cause to search an individual.

*People v. Gonzalez*, 39 N.Y.2d 122 (BR 18) states that consent is voluntary when it is a true act of the will, an unequivocal product of an essentially free and unconstrained choice. Voluntariness is incompatible with official coercion, actual or implicit, overt or subtle.

NYC Administrative Code §14-173 (BR 19) states that with respect to obtaining voluntary, knowing, and intelligent consent prior to the search of a person, for a search that is based solely on a person's consent to such search, an officer must articulate, using plain and simple language, to the subject of the search that they are being asked to voluntarily, knowingly, and intelligently consent to search and explained that such search will not be conducted if refused.

BWC confirmed that PO Abdallah asked § 87(2)(b) if he had any weapons on him and in his vehicle, § 87(2)(g)

Therefore, it is recommended that **Allegation B** be closed as *substantiated*.

§ 87(2)(g)  
PO Abdallah stated that in asking, "Can I check you?" he was asking to search § 87(2)(b) which would have also involved a frisk, § 87(2)(g) BWC showed that § 87(2)(g) stated, "Go ahead," at PO Abdallah's request, § 87(2)(g)

Therefore, it is recommended that **Allegations C-D** be closed as *substantiated*.

**Allegation (E) Abuse of Authority: At § 87(2)(b) in Brooklyn, Sergeant Michael Venditti searched the vehicle in which § 87(2)(b) was an occupant.**

**Allegation (F) Abuse of Authority: At § 87(2)(b) in Brooklyn, Police Officer Dia Abdallah searched the vehicle in which § 87(2)(b) was an occupant.**

§ 87(2)(b) stated (BR 01) that PO Abdallah asked him for consent to search his vehicle, which § 87(2)(b) refused. However, PO Abdallah then stated he did not need consent to search the vehicle and entered the vehicle through the driver's side door, while Sgt. Venditti entered the vehicle through the front passenger door. Sgt. Venditti and PO Abdallah exited the

vehicle a few seconds after.

PO Abdallah stated (BR 13) that he asked § 87(2)(b) if he could search his vehicle to get a reaction out of him and see if § 87(2)(b) appeared nervous at the request. § 87(2)(b) refused the search, but PO Abdallah explained to him that consent was not required because of the open container in the vehicle. PO Abdallah searched for additional open containers by leaning his body inside through the driver's side door and searching around the driver's seat.

Sgt. Venditti stated (BR 16) that he searched § 87(2)(b) vehicle for additional open containers. Sergeant Venditti searched the door panel, but no additional containers were found.

In Sgt. Venditti's BWC (BR 08) at 03:18, Sgt. Venditti tells § 87(2)(b) that he has a liquor bottle on the floor at the back of the vehicle. At 03:28, § 87(2)(b) states he is not drinking and at 03:31 states the bottle is empty, to which Sgt. Venditti responds that it is still open. At 05:38, PO Abdallah informs § 87(2)(b) that as his vehicle contained an open container, they will search his vehicle. At 06:06, Sgt. Venditti opens the front passenger door while PO Abdallah opens the driver's side door. At 06:16, Sgt. Venditti points his flashlight at the inside of the driver's side door going through the door panel compartment. At 06:23, Sgt. Venditti gets inside the vehicle, while PO Abdallah moves the coat that is on the driver's seat. Sgt. Venditti points his flashlight at the backseat, but BWC is unable to capture the floor in the back. At 06:38, PO Abdallah points his flashlight at the driver's side door and the front console. At 06:59, Sgt. Venditti exits the vehicle.

In PO Abdallah's BWC (BR 07) at 06:03, PO Abdallah points his flashlight at the driver's side door and at the driver's seat and front passenger seat. PO Abdallah leans out of the car at 06:48.

PO Toner's, PO Saintelme's, and PO Mattar's BWCs do not capture the vehicle search from a better angle (BR 06, 09, 10)

§ 87(2)(b) was issued a summons (BR 05) for VTL §1227 noting that an open bottle of a 750 ML "Dusse VSOP" was observed inside the vehicle.

*Vehicle & Traffic Law Section 1227 (BR 11)* states that drinking alcoholic beverages or the possession of an open container containing an alcoholic beverage, in a motor vehicle located upon the public highways or right-of-way public highway is prohibited. Any operator or passenger violating this section shall be guilty of a traffic infraction.

In *People v. Boykin*, 188 A.D.3d 1244 (BR 20), it is stated that once officers possess probable cause that occupants/operators of a vehicle are in violation of VTL §1227.1, officers are permitted to enter and search the vehicle to seize the alcohol and search for additional open containers of alcohol.

While BWC was unable to capture the bottle in the vehicle, § 87(2)(b) confirmed on BWC and in his interview that he had an open container in his vehicle. § 87(2)(g)

Therefore, it is recommended that **Allegations E-F** be closed as *within NYPD guidelines*.

**Allegation (G) Abuse of Authority: At § 87(2)(b) in Brooklyn, Sergeant Michael Venditti detained § 87(2)(b)**

§ 87(2)(b) stated (BR 01) that after PO Abdallah and Sgt. Venditti searched his vehicle, they motioned for the other officers to arrest § 87(2)(b)

PO Abdallah stated (BR 13) that while searching § 87(2)(b) vehicle, he heard a crowd start to form. PO Abdallah looked behind him and saw approximately four to five people standing on the sidewalk, approximately three feet away from him, recording and yelling, though PO Abdallah could not recall what they were saying. Additionally, there were other individuals further down the block. PO Abdallah added that he was familiar with the area being a high crime



and gang area. PO Abdallah stated that the individuals in the crowd were not interfering with their police work. There was an individual that attempted to get close to the police vehicles, but PO Abdallah did not know if that was before or after he and Sgt. Venditti decided it would be best to issue § 87(2)(b) a summons at the stationhouse due to the crowd. § 87(2)(b) was not under arrest.

Sgt. Venditti stated (BR 16) that a crowd began to form before § 87(2)(b) was removed from the vehicle, and eventually surrounded the officers after § 87(2)(b) was removed from the vehicle. Sgt. Venditti believed that the crowd was close enough to be considered unsafe but was unable to say how close the crowd stood to the officers and did not know how many people were in the crowd. Sgt. Venditti did not recall if he or his partners gave the crowd any commands. As he searched the vehicle, Sgt. Venditti was not able to see or hear what the crowd was doing. Sgt. Venditti intended to issue § 87(2)(b) a summons on scene and informed PO Abdallah as they searched § 87(2)(b) vehicle, by stating they would “96 him.” However, PO Abdallah then stated, “At the base,” to which Sgt. Venditti agreed to by stating, “Yes.” However, Sgt. Venditti added that it was his partners who made the decision to bring § 87(2)(b) back to the stationhouse and issue him a summons from there, because it would be safer due to the crowd. Thus, Sgt. Venditti did not search the vehicle further than the door panel. Sgt. Venditti informed § 87(2)(b) that he was being detained, not arrested.

PO Saintelme (BR 15) and PO Toner (BR 14) stated § 87(2)(b) was removed to the stationhouse because of the crowd. PO Saintelme did not recall if Sgt. Venditti made the decision to remove § 87(2)(b) but PO Toner believed it was Sgt. Venditti who did so. PO Saintelme could not approximate the size of the crowd, but PO Toner stated there were approximately five individuals on the sidewalk by them, and there were additional individuals walking up and down the block, and others looking out their windows. PO Saintelme and PO Toner could not recall what the crowd was saying, but PO Toner stated that they were trying to talk with the officers. PO Saintelme stated that some individuals were recording, moving onto the street, and coming close to officers. PO Saintelme did not recall how close the individuals got to officers, but considered the crowd interfering with police action, as he had to tell them to go to the sidewalk, which they complied with. PO Toner stated the area was a gang prone location and there were three shootings in the area in the past few years, but at the time of incident, the crowd was not interfering.

The investigation was able to make a determination without PO Mattar’s statement.

In PO Abdallah’s BWC (BR 07) at 06:10, an individual is heard asking why § 87(2)(b) vehicle is being searched and stating that the officers cannot do that. At 06:18, PO Abdallah states, “So we can see for the open container,” to which Sgt. Venditti states, “So we’ll just 96 it then if that’s how you’re feeling.” At 06:25, PO Abdallah asks, “At the base?” to which Sgt. Venditti states, “Yeah,” and PO Abdallah states, “Alright,” at 06:31.

In Sgt. Venditti’s BWC (BR 08) at 01:00, as Sgt. Venditti approaches § 87(2)(b) vehicle, there are two individuals seen standing by the entrance of a building, and at 01:11 the individuals speak indistinctly to the officers. From 01:11 to 06:00, BWC briefly captures the two individuals still on the sidewalk, with PO Mattar standing by them at 02:59. No additional individuals are seen on the sidewalk. From 06:06 to 06:59, BWC does not capture the two individuals making any sort of commotion as the officer searched the vehicle. At 07:15, as Sgt. Venditti states to § 87(2)(b) that he is not under arrest, there are now three individuals on the sidewalk, a car in between them and the officers, and one has his phone up with the back camera facing the officers. One of the individuals asks the officers why they are locking § 87(2)(b) up for, to which PO Abdallah and Sgt. Venditti tell the individual that § 87(2)(b) is not under arrest. At 07:20, Sgt. Venditti states that § 87(2)(b) is being detained for a summons. At 08:11, PO Abdallah tells an individual to get on the sidewalk as the individual is seen walking across the street with his phone up, back camera facing the officers, though he stands approximately 10 feet from PO Saintelme who stands with § 87(2)(b) by the police vehicle.



In PO Mattar's BWC (BR 10) as § 87(2)(b) steps out of the vehicle, the two individuals remain on the sidewalk, one of which has their phone up, with the back camera facing officers. At 02:55, the individuals ask what is happening, to which PO Mattar explains it is a stop. At 03:08, the individual holding a phone walks down the block, while the other asks why they are searching § 87(2)(b). At 03:13, the individual with the phone goes onto the street, to which PO Mattar tells him he has to stay on the sidewalk. At 03:26, the individual with the phone is seen back on the sidewalk. At 04:00, both individuals stand on the sidewalk a few feet from where PO Saintelme stands on the street. At 04:16, one of the individuals states, "Y'all are going hard." From 04:12 to 06:11, the individuals remain where they are on the sidewalk. At 06:11, as PO Abdallah goes to search the car. The individuals remain on the sidewalk, standing parallel to the driver's side door as one of the individuals continues recording.

In PO Saintelme's BWC (BR 09) at 03:10, the individual with his phone up, steps onto the street behind a vehicle and asks why they are searching § 87(2)(b) to which PO Saintelme asks him to get on the sidewalk, which the individual proceeds to do.

None of the BWCs capture the crowd yelling or interfering with the officers as they dealt with § 87(2)(b) before deciding to remove him to the stationhouse (BR 6-10).

Patrol Guide Procedure 212-11 (BR 21) states that when conducting a Level 3 investigative Terry stop, a suspect may be detained only as long as necessary to confirm or dispel an officer's suspicion that the suspect was committing, committed, or was about to commit a felony or penal law misdemeanor. Authority to detain the suspect ends when the tasks tied to the reason for the stop are completed or reasonably should have been completed. It also instructs officers to not transport or move the suspect from the location where she/he is stopped unless she/he voluntarily consents or there is an exigency necessitating relocation (e.g., hostile crowd, threat to safety, hospital show-up, etc.).

Administrative Guide 304-21 (BR 22) states that individuals have a right to lawfully observe and/or record police activity including searches and arrests, and the right extends to individuals in public places such as streets and sidewalks.

BWC showed that PO Abdallah and Sgt. Venditti made the decision to issue § 87(2)(b) his summons at the stationhouse. However, BWC showed that before the decision was made, there were only two individuals on the sidewalk, one of which seemed to be recording. § 87(2)(g)

It is undisputed that at one point the individual stepped onto the street and PO Saintelme instructed him to return to the sidewalk, which the individual complied with. At no point did BWC capture the individuals yelling or screaming or interfering with the vehicle stop. § 87(2)(g)

Therefore, it is recommended that Allegation G be closed as *substantiated*.

**Allegation (H) Abuse of Authority: At § 87(2)(b) in Brooklyn, Police Officer Nicholas Toner frisked § 87(2)(b)**

**Allegation (I) Abuse of Authority: At § 87(2)(b) in Brooklyn, Police Officer Nicholas Toner searched § 87(2)(b)**

**Allegation (J) Abuse of Authority: At § 87(2)(b) in Brooklyn, Police Officer**

**Rosarion Saintelme frisked** § 87(2)(b)

**Allegation (K) Abuse of Authority: At** § 87(2)(b) **in Brooklyn, Police Officer**

**Rosarion Saintelme searched** § 87(2)(b)

§ 87(2)(b) stated (BR 01) that he was wearing sweatpants with long johns underneath his sweatpants. Before being placed in the vehicle, PO Saintelme frisked § 87(2)(b) from chest to his legs. PO Saintelme reached inside the back of § 87(2)(b) sweatpants and briefly stuck his hand deeper into § 87(2)(b) butt underneath his sweatpants but above the long johns. § 87(2)(b) began to move his body around to stop PO Saintelme from touching that area. PO Saintelme had his hands inside of § 87(2)(b) sweatpants for less than a minute. PO Saintelme then placed § 87(2)(b) in the back of the police vehicle.

PO Toner stated (BR 14) he was aware that § 87(2)(b) was being transported to the stationhouse issue a summons. However, PO Toner stated a summons is in lieu of an arrest and that it is procedure to search an individual before placing them in the police vehicle; thus, PO Toner frisked and searched § 87(2)(b) before placing him inside the police vehicle. PO Toner did not observe any bulges on § 87(2)(b). PO Toner searched § 87(2)(b) pant pockets and found a packet of marijuana and his phone. PO Toner also frisked § 87(2)(b) waistband, which is common during a search as individuals sometimes conceal weapons in the waistband area along with the pockets or groin area. PO Saintelme also searched § 87(2)(b) but PO Toner did not witness PO Saintelme placing his hand inside of § 87(2)(b) buttocks.

PO Saintelme stated (BR 15) that he was aware that § 87(2)(b) was not under arrest and that he was being removed to the stationhouse for a summons. PO Saintelme frisked and searched § 87(2)(b) before placing him into the police vehicle as it is procedure to do so before placing the individual inside the police vehicle. PO Saintelme frisked § 87(2)(b) pants from top to bottom with an open-hand pat down motion, frisked the waistband, and rolled down § 87(2)(b) socks. § 87(2)(b) was wearing multiple pairs of pants, but PO Saintelme did not recall how many layers were on top of § 87(2)(b) underwear, or whether § 87(2)(b) was wearing any underwear. Thus, while frisking § 87(2)(b) pants, PO Saintelme gripped onto the front and sides of § 87(2)(b) pants around his inner thighs and pulled down on the material. PO Saintelme could not recall how many times he searched § 87(2)(b) pant/thigh area on scene, but stated he searches everyone thoroughly for contraband before placing them in the police vehicle. When searching § 87(2)(b) waistband, he used an open hand to search the inside of the waistband. As PO Saintelme frisked and searched § 87(2)(b) he denied making contact with § 87(2)(b) privates or buttocks. At no point did PO Saintelme hand enter § 87(2)(b) buttocks. PO Saintelme stated that while he said, "You'd be surprised what's up there," to § 87(2)(b) exclamation that he was going in his buttocks, he did not do so. PO Saintelme did not feel or recover any contraband from frisking and searching § 87(2)(b).

PO Abdallah stated (BR 13) that he did not witness § 87(2)(b) being frisked and searched before being placed into the police vehicle.

Sgt. Venditti stated (BR 16) that he did not instruct PO Saintelme or PO Toner to conduct a frisk and search of § 87(2)(b) but a frisk and a search are procedure when taking an individual into custody, regardless of whether the individual is under arrest. § 87(2)(b) was upset about how PO Saintelme was searching him, but Sgt. Venditti did not witness PO Saintelme placing his hand inside of § 87(2)(b) pants to touch his buttocks or see him doing so as PO Saintelme frisked the outside of § 87(2)(b) sweatpants.

In PO Toner's BWC (BR 06) at 07:47, PO Toner opens the police vehicle rear passenger side door and at 07:50, grasps the bottom of § 87(2)(b) hoodie and shakes it. At 07:51, PO Toner places his left hand inside of § 87(2)(b) right pant pocket, pulling out his phone, and small graphic plastic pouch, and places all items back in the pocket. At 08:19, PO Toner places his right hand inside of § 87(2)(b) left pant pocket and at 08:22 states, "Let me take your keys out," as he places his left hand back into the right pant pocket. At 08:28, PO Toner lifts § 87(2)(b)

§ 87(2)(b) hoodie and he grabs the waistband of his pants, frisking the front of it; § 87(2)(b) has another pair of pants underneath his sweatpants and underwear underneath the second pair of pants. At 08:35, PO Toner squeezes the outside of the right pant pocket. At 08:36, PO Saintelme pulls at § 87(2)(b) pant waistband on the right side and shakes it and at 08:39, frisks down the right pant pocket, squeezing the material in the area and then frisks down his leg. BWC does not capture the rest of PO Saintelme's frisk and search clearly.

In PO Saintelme's BWC (BR 09) at 08:44, PO Saintelme frisks down § 87(2)(b) left pant leg and rolls down his sock along with pulling the pant leg up. At 08:52, PO Saintelme frisks up § 87(2)(b) left pant leg and tells § 87(2)(b) to spread his legs at 08:58. At 08:59, PO Saintelme's right hand is in between § 87(2)(b) legs and seems to be frisking the top inner left thigh. At 09:03, § 87(2)(b) states, "You're all in my ass," to which PO Saintelme states to relax along with, "You'll be surprised what's up there." At 09:08, § 87(2)(b) states, "There is nothing in my ass," to which PO Saintelme states, "I'm not in your ass, I'm just checking you." At 09:15, PO Saintelme grabs the back of § 87(2)(b) pant waistband and frisks it. At 09:18, PO Saintelme places his open hand, palm facing § 87(2)(b) left inner thigh, in between § 87(2)(b) legs and moves his hand up § 87(2)(b) leg causing the sweatpants material to bunch up and also slide up. At 09:47, PO Saintelme pulls up § 87(2)(b) sweatpants and places his hand in between § 87(2)(b) legs. At 09:49, PO Saintelme grips onto what looks like top inner thigh area of the sweatpants to which § 87(2)(b) pulls from and again states that PO Saintelme is touching his buttocks. At 09:55, Sgt. Venditti tells § 87(2)(b) that it is just procedure, and PO Saintelme tells § 87(2)(b) to relax. At 10:00, PO Saintelme again tells § 87(2)(b) to spread his legs and at 10:05, pulls up his sweatpants. At 10:06, PO Saintelme places his right hand in between § 87(2)(b) legs, pulling approximately four times on the sweatpants by what looks like the top inner left thigh to which at 10:12, again § 87(2)(b) states that PO Saintelme is touching his buttocks, and he moves away from PO Saintelme's hand. At 10:15, § 87(2)(b) is asked to get in the police vehicle.

PO Abdallah's, PO Mattar's, and Sgt. Venditti's BWC do not capture PO Toner's and PO Saintelme's frisk and search of § 87(2)(b) from a better angle (BR 07-10).

*People v. Gamble*, 210 A.D.2d 903 (BR 23) states that where a sufficient basis for detention exists, an officer may conduct a pat down frisk as a routine safety measure preliminary to transporting a suspect in a police vehicle.

*People v. DeBour*, 40 N.Y.2d 210 (BR 17) states that officers may frisk an individual when they have reasonable suspicion that the individual has a weapon. Additionally, reasonable suspicion exists when the officer suspects that the person has committed, is committing, or will commit a violent crime including situations in which an officer observes something on the person that they suspect is a weapon. Officers must have probable cause to search an individual.

BWC confirmed that PO Toner and PO Saintelme frisked § 87(2)(b) before placing him in the police vehicle. Despite § 87(2)(b) expressing discomfort with the frisk, BWC showed that the officers conducted § 87(2)(g) frisk including patting down, grabbing, and squeezing § 87(2)(b) clothing. § 87(2)(g)

Therefore, it is recommended that **Allegation H** and **Allegation J** be closed as *within NYPD guidelines*.

BWC confirmed that PO Toner PO Saintelme searched § 87(2)(b) before placing him inside the police vehicle. § 87(2)(g)

Therefore, it is



recommended that **Allegation I** and **Allegation K** be closed as *substantiated*.

**Allegation (L) Abuse of Authority: At § 87(2)(b) in Brooklyn, Police Officer Christopher Mattar seized § 87(2)(b) property.**

§ 87(2)(b) stated (BR 01) that as he was being driven away from the scene he saw PO Mattar enter his vehicle to drive it to the stationhouse.

Sgt. Venditti stated (BR 16) that § 87(2)(b) vehicle had to be removed to the stationhouse because it was illegally parked and to ensure that § 87(2)(b) property was safeguarded.

The investigation was able to make a determination without PO Mattar's statement.

PO Mattar's BWC (BR 10) shows him driving § 87(2)(b) vehicle to stationhouse from 11:08 to 17:40.

Patrol Guide Procedure 218-12 (BR 24) states that a vehicle may be safeguarded at the command for forty-eight hours when not required as evidence or not the subject of forfeiture proceedings.

*People v. Davis*, 883 N.Y.S.2d 854 (BR 25) states that community caretaking function authorizes the seizure of vehicles for the preservation of uninterrupted flow of traffic and removal of vehicles in violation of parking ordinances.

According to the NYC Department of Transportation, all of New York City is a designated Tow Away Zone under the State's Vehicle and Traffic Law; any vehicle parked illegally may be towed (BR 32).

§ 87(2)(b) vehicle was double parked on a one lane, one way street. § 87(2)(g)

Therefore, it is recommended that **Allegation L** be closed as *within NYPD guidelines*.

**Allegation (M) Abuse of Authority: At the 70th Precinct stationhouse, Police Officer Nicholas Toner frisked § 87(2)(b)**

**Allegation (N) Abuse of Authority: At the 70th Precinct stationhouse, Police Officer Nicholas Toner searched § 87(2)(b)**

§ 87(2)(b) stated (BR 01) that while at the stationhouse, PO Toner searched him before being placed in the cells. § 87(2)(b) explained that PO Toner searched him in the same manner PO Saintelme searched him before being placed in the police vehicle.

PO Toner stated (BR 14) that upon arriving at the stationhouse, he searched § 87(2)(b) in front of the desk in the lobby to safeguard his property. When searching § 87(2)(b) legs, PO Toner searched § 87(2)(b) thighs and his groin area. PO Toner could not recall if he frisked § 87(2)(b) with an open hand or gripped onto anything. PO Toner did not recall if he made contact with § 87(2)(b) groin while frisking and searching him, nor if his fingers made contact with § 87(2)(b) buttocks but denied placing his hand inside of § 87(2)(b) buttocks. Before placing § 87(2)(b) in the cells, PO Toner frisked and searched § 87(2)(b) again. PO Toner explained he frisked § 87(2)(b) thighs and groin area. PO Toner did not recall if he gripped onto anything or used an open hand. PO Toner did not recall if he made contact with § 87(2)(b) buttocks. PO Toner frisked and searched § 87(2)(b) as it was procedure to do so.

In PO Saintelme's BWC (BR 09) at 19:01, while at the stationhouse, in front of the desk, PO Toner places his right hand inside of § 87(2)(b) left pant pocket, pulling the inside material out. At 19:03, he frisks the left side of § 87(2)(b) hoodie and at 19:08, he runs both hands on the front and back of the pant waistband. At 19:13, PO Toner places his left hand in between § 87(2)(b) leg frisking § 87(2)(b) upper left inner thigh. At 19:23, PO Toner

frisks the right side of § 87(2)(b) hoodie and at 19:27, places his left hand inside the right pant pocket. At 19:29, PO Toner runs both hands on the front and back of the pant waistband. At 19:33, PO Toner places his right hand in between § 87(2)(b) legs and frisks the upper right inner thigh. At 27:17, PO Toner instructs § 87(2)(b) to remove his sweater and he complies; he is wearing a t-shirt underneath. At 27:36, before placing § 87(2)(b) in the cells, PO Toner frisks § 87(2)(b) t-shirt and at 27:42, runs his hands on the back of § 87(2)(b) pant waistband. At 27:45, PO Toner pulls up § 87(2)(b) sweatpants and at 27:48 the sweatpants move slightly back down as PO Toner places his left hand in between the front of § 87(2)(b) legs and his right hand in between the back of § 87(2)(b) legs. At 27:50, PO Toner grips the sweatpants by the crotch area and pulls the material down approximately three times, and at 27:51, frisks the material by the upper left inner thigh. At 28:00, PO Toner runs his hand around the waistband of the second pair of pants § 87(2)(b) wears and then pulls up the sweatpants. At 28:02, PO Toner places his left hand inside the right pant pocket. At 28:03, PO Toner places his left hand in between the back of § 87(2)(b) legs and at 28:05, is seen frisking from the top of § 87(2)(b) right inner thigh and gliding his hand down the leg. § 87(2)(b) is placed in the cells at 29:00.

PO Toner's BWC (BR 06) does not capture his frisk and search of § 87(2)(b) from a better angle.

Patrol Guide Procedure 208-05 (BR 26) states that upon arrival at the stationhouse a thorough search of clothing should be performed to ensure the safety of all persons within the facility. All pockets are to be emptied and all clothing not removed will be examined by grabbing, crushing, and squeezing the garments by sliding the hand across the body to detect articles that may be underneath or sewn to the clothing.

Patrol Guide Procedure 210-08 (BR 27) states that before an individual is placed in a holding pen, the clothing and individual must be thoroughly searched.

BWC confirmed that PO Toner frisked and searched § 87(2)(b) upon arrival at the stationhouse and before placing him in a cell. § 87(2)(g)

Therefore, it is recommended that **Allegations M-N** be closed as *within NYPD guidelines*.

**Allegation (O) Abuse of Authority: At the 70th Precinct stationhouse, officers damaged § 87(2)(b) property.**

§ 87(2)(b) stated (BR 01) that while at the stationhouse, he did not witness officers searching his vehicle again. However, after being released, § 87(2)(b) noticed damage to his vehicle. The back of the center console had been pulled out of place, and a portion of the dashboard on the passenger side of the vehicle was chipped as though it had been broken off. § 87(2)(b) agreed to provide the investigation with photos of the damage but never did so.

PO Toner, PO Saintelme, PO Abdallah, and Sgt. Venditti (BR 13-16) were all unaware of any damage to § 87(2)(b) vehicle. PO Saintelme and PO Abdallah denied performing a search of the vehicle at the stationhouse. PO Toner did not believe a vehicle search was performed at the stationhouse and Sgt. Venditti did not recall doing so. Sgt. Venditti stated that the open container in the vehicle was removed but did not know what happened to it as it would not have been invoiced, and he did not recall if that was done at the stationhouse.

In PO Abdallah's BWC (BR 07) from 06:03 to 06:48, while at the scene, as PO Abdallah searches the vehicle, he only points his flashlight at the driver's side door and at the driver's seat and front passenger seat. PO Abdallah does not take any action that causes damage to the vehicle.

In Sgt. Venditti's BWC (BR 08) as he searches § 87(2)(b) vehicle, at 06:23, he places his right hand on the front dashboard directly across the front passenger seat as he leans into the vehicle. At 06:27, Sgt. Venditti moves his right hand placing it on top of the center console. At 06:28, as Sgt. Venditti only points his flashlight at the back of the vehicle, the back center console

is seen in place and not pulled out. At 06:59, Sgt. Venditti exits the vehicle.

In PO Mattar's BWC (BR 10) from 09:11 to 11:08, after PO Mattar finds § 87(2)(b) car keys in the door panel, PO Mattar sits in the vehicle. PO Mattar does not touch the front dashboard or reach for the center console. From 11:08 to 17:40, as PO Mattar drives the vehicle to the stationhouse, he is not captured touching the front dashboard or reaching for the center console. At 17:47, PO Mattar turns off the vehicle and exits the vehicle.

At no point do PO Saintelme or PO Toner search § 87(2)(b) vehicle (BR 06, 09).

BWC did not capture PO Mattar, PO Abdallah, Sgt. Venditti, PO Saintelme, or PO Toner take any action to cause damage to the front dashboard or center console as they were in § 87(2)(b) vehicle. Additionally, § 87(2)(b) did not provide any photos of the damage to the vehicle. § 87(2)(g)

Therefore, it is recommended that **Allegation O** be closed as *officer(s) unidentified*.

§ 87(2)(g), § 87(4-b)

#### Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (BR 02).
- Sgt. Venditti has been a member of service for 13 years and has been a subject in 12 complaints and 34 allegations, of which four were substantiated:
  - 202207963 involved a substantiated allegation for discourtesy, word, and offensive language, disability against Sgt. Venditti. The Board recommended charges and the NYPD did not impose disciplinary action.
  - 202302537 involved a substantiated allegation for failure to provide RTKA card and question against Sgt. Venditti. The Board recommended Command Discipline B and the NYPD has not yet imposed discipline. § 87(2)(g)



- PO Toner has been a member of service for five years and has been a subject in six complaints and 26 allegations, of which six have been substantiated:
  - 202302537 involved two substantiated allegations each for failure to provide RTKA card, frisk, and search of person, and one substantiated allegation of a stop against PO Toner. The Board recommended charges and the NYPD has not yet imposed discipline. § 87(2)(g)
- PO Abdallah has been a member of service for six years and has been a subject in eight complaints and 21 allegations, of which three have been substantiated:
  - 202302537 involved a substantiated allegation for failure to provide RTKA card, frisk, and search of person against PO Abdallah. The Board recommended Command Discipline B and the NYPD has not yet imposed discipline. § 87(2)(g)
- PO Saintelme has been a member of service for nine years and has been a subject in eight complaints and 14 allegations, of which one was substantiated:
  - 202103290 involved a substantiated allegation of a vehicle search against PO Saintelme. The Board recommended Command Discipline A and the NYPD imposed Command Discipline A. § 87(2)(g)

#### **Mediation, Civil, and Criminal Histories**

- This complaint was not suitable for mediation.
- As of February 15, 2024, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this incident (BR 03).

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]  
 [REDACTED]  
 [REDACTED]  
 [REDACTED]  
 [REDACTED]  
 [REDACTED]

#### **RPBP History**

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 16

|               |                       |                     |                   |
|---------------|-----------------------|---------------------|-------------------|
| Investigator: | <u>Haeley Galeote</u> | <u>Inv. Galeote</u> | <u>02/20/2025</u> |
|               | Signature             | Print Title & Name  | Date              |

|               |                   |                      |                   |
|---------------|-------------------|----------------------|-------------------|
| Squad Leader: | <u>Patrick Yu</u> | <u>IM Patrick Yu</u> | <u>02/26/2025</u> |
|               | Signature         | Print Title & Name   | Date              |

|           |           |                    |         |
|-----------|-----------|--------------------|---------|
| Reviewer: | <u></u>   | <u></u>            | <u></u> |
|           | Signature | Print Title & Name | Date    |